

**UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF NEW JERSEY**

IN RE: :
“SCHEDULE A” CASES : **STANDING ORDER 2025-04**

WHEREAS, this Court is well aware that a proliferation of online counterfeit sales is creating actual and substantial risks for companies possessing valuable, retail-based trademarks, copyrights, and patents; and

WHEREAS, many companies are seeking injunctive relief against this theft of their intellectual property rights by filing what has become known as “Schedule A” cases; and

WHEREAS, this Court has observed an uptick in Schedule A cases filed in this District; and

WHEREAS, this Court has observed that Schedule A litigants are gradually, and often unusually, modifying the Court’s rules and procedures, creating extraordinary exceptions to same rules and procedures; and

WHEREAS, the Court finds good cause to examine how it procedurally administers Schedule A cases; and

WHEREAS, the Court further finds good cause to provide guidance to counsel and litigants in these cases; accordingly

IT IS ORDERED, effective immediately, that the following procedural guidelines shall apply to all Schedule A cases:

1. To satisfy Rule 20, each complaint shall consist of a single defendant or group of defendants acting under the same operator, and a separate filing fee shall be paid for each separate complaint. This comports with the typical IP case, where an IP holder sues a particular infringer for its specific conduct. If the marks, copyrights, or patents at issue are disparate and unrelated, then the complaints must be divided to include only related IP. One of the important reasons for this severance is that the Court anticipates that personal jurisdiction will be a defendant-specific inquiry, which examines the particular defendant’s sales of the allegedly infringing product into the forum state. So joinder may be impractical, at least before personal jurisdiction is established, where “the claims against the defendants involve different facts” relating to personal

jurisdiction.¹ *UN4 Prods., Inc. v. Does 1-15*, No. 17-2768, 2017 WL 5885779, at *2 (E.D. Pa. Nov. 29, 2017); *see also Blood v. Fed. Bureau of Prisons*, 351 F. App'x 604, 607 (3d Cir. 2009) (joinder impractical where it would “necessarily require a separate factual inquiry” into each plaintiff’s claims). If necessary, for the sake of efficiency, the Court will be open to consolidating related cases once it is satisfied that personal jurisdiction exists and the other consolidation factors are met (*e.g.*, that there is a logical relationship among the parties and the claims); and

2. To satisfy Rule 11, the complaint must plausibly plead allegations of personal jurisdiction, including contacts with the forum if specific jurisdiction is invoked.² The law is well-settled that simply being an online seller on Amazon isn’t enough. And the law is also well-settled that that plaintiff cannot create personal jurisdiction by ordering a product to be shipped to the forum. So before the filing of the complaint, the plaintiff must have developed some evidence of *each* defendant’s contacts with the forums, including, if necessary, sales information or distribution locations³; and

¹ This concern is amplified by a member of this Court’s observation that personal jurisdiction may turn out to be a major issue throughout the litigation of Schedule A cases involving foreign defendants, even if defendants do not appear to contest personal jurisdiction. If a “[p]laintiff were to move for default judgment, the Court would hold an evidentiary hearing or otherwise require [the plaintiff] to develop an appropriate evidentiary record from which the Court could be assured of the validity of its judgment, which includes confirmation of personal jurisdiction.” *Xie v. GUANHE Home essentials*, No. 25-265, 2025 WL 1039233, at *3 n.6 (W.D. Pa. Apr. 8, 2025) (Hornak, C.J.).

² This includes any allegations of personal jurisdiction under the federal long-arm statute, Rule 4(k)(2).

³ In some cases, plaintiffs have complained that this information is not readily available, and that they need some jurisdictional discovery. But that doesn’t excuse Rule 11’s threshold requirement that “the factual contentions have evidentiary support of, if specifically so identified, will likely have evidentiary support after a reasonable opportunity for further investigation or discovery.” That said, if a plaintiff meets Rule 11’s threshold requirement, the Court will certainly consider allowing jurisdictional discovery, on a case-by-case basis. *See Rockwell Automation, Inc. v. EU Automation, Inc.*, No. 21-1162, 2022 WL 1978726, at *12 (D. Del. June 6, 2022) (“Although the plaintiff bears the burden of demonstrating facts that support personal jurisdiction, courts are to assist the plaintiff by allowing jurisdictional discovery unless the plaintiff’s claim is clearly frivolous. However, a court should not permit discovery as a matter of course; before allowing jurisdictional discovery to proceed, the court must be satisfied that there is some indication that the particular defendant is amenable to suit in this forum. If a plaintiff does not come forward with some competent evidence that personal jurisdiction over the defendant might exist, a court should not permit jurisdictional discovery to proceed. To receive jurisdictional discovery, plaintiffs must claim that their factual allegations establish with reasonable particularity the possible existence of requisite contacts.”)

3. The Court will not, as a matter of course, allow a plaintiff to dispense with ordinary service requirements, including foreign service requirements under the Hague Convention. There needs to be a particularized showing—which will likely be case specific and defendant specific—before alternate service is authorized. *D Squared Plant Traps LLC v. Guangdong Bixing Trading Co., LTD.*, 716 F. Supp. 3d 352, 357-58 (W.D. Pa. 2024) (Conti, J.) (no showing that the case fell within an exception under the Convention that would authorize an alternative form of service). Any motions for alternate service should explain what efforts have been made to discover each defendant’s domicile and to effectuate service by usual means (including what efforts were undertaken to determine the address of each defendant and the validity of the address) and whether the form of alternate service requested is permitted by the Hague Convention given each defendant’s domicile (and the factual basis for this). *See RJ Brands, LLC v. Hangdong Trading Ltd.*, No. 21-04747, 2021 WL 3206813, at *3 (D.N.J. July 28, 2021) (rejecting conclusory assertion that compliance with the default method under the Hague Convention is “too time consuming, costly, and potentially fruitless”); *Luxottica Grp. S.p.A. v. Partnerships & Unincorporated Associations Identified on Schedule “A”*, 391 F. Supp. 3d 816 (N.D. Ill. 2019). The Court would also note that to save costs, plaintiffs can always email defendants the waiver-of-service forms, which would obviate the need for Hague Convention service; and
4. The Court does not intend, as a matter of course, to grant *ex parte* TRO motions. *See Forcel Media Limited*, 2025 WL 1665586. Because “[p]reliminary injunctive relief is an extraordinary remedy and should be granted only in limited circumstances[.]” the Court will not grant TRO and preliminary-injunction motions based on conclusory statements. *Kos Pharms., Inc. v. Andrx Corp.*, 369 F.3d 700 (3d Cir. 2004) (cleaned up). The Court will not grant any TRO motions where there is not a sound basis that personal jurisdiction exists as to the defendant. The Court is also unlikely to grant any TRO motion to freeze online accounts absent some evidence that the defendant has transferred or is transferring assets to avoid judgment in the specific case, and also after a specific showing linking the amount of assets to the amount of disgorgement at issue. *See Wham-O Holding v. The Partnerships*, No. 2412523, ECF 39 (N.D. Ill. Feb. 20, 2025) (declining to impose blanket asset freeze on assets beyond those derived from the sale of allegedly infringing products). A prejudgment asset restraint—let alone one requested without any notice to the defendant—is an “extraordinary measure” not “to be employed simply to secure a pot of money for later recovery of damages.” *Jergenson v. Inhale Int’l Ltd.*, No. 22-2040, 2023 WL 167413, at *5 (N.D. Ill. Jan. 12, 2023); and
5. Because the *ex parte* TRO motion is usually the justification for granting a motion to seal, the Court is unlikely to seal any filings. If a motion to seal is filed, it must be supported by the grounds set forth in *In re Avandia Mktg., Sales Pracs. & Prods. Liab. Litig.*, 924 F.3d 662, 673 (3d Cir. 2019); and

6. A filing of the complaint must be accompanied by a declaration from plaintiff's counsel that identifies any pending cases brought by the plaintiff(s) against any of the named defendants prior to this suit. The declaration must identify the case number(s), note whether the intellectual property at issue was the same as in this case, and describe the status and/or disposition of the other case(s) (*e.g.*, pending, settlement, dismissal, or other disposition); and it is further

ORDERED that failure to comply with any provision of this Standing Order shall constitute good cause for dismissal without prejudice of the Schedule A case.

Date: September 25, 2025

A handwritten signature in black ink, appearing to read "Renée Marie Bumb", written over a horizontal line.

Hon. Renée Marie Bumb
Chief United States District Judge